

TENTATIVE RULINGS for LAW and MOTION

July 23, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **AKKCD West Sacramento Inc v. Minnar**
Case No. CV2026-1921

Hearing Date: **July 23, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Korey Minnar’s request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) Defendant did not request judicial notice in a separate document as required. (Cal. Rules of Court, rule 3.1113(l).)

Defendant’s unopposed motion to quash service of summons is **DENIED**. (Code Civ. Proc., §§ 418.10, subd. (a), 1167.4.) The Court notes that plaintiff AKKCD West Sacramento Inc has not yet filed a proof of service, showing service of the complaint on defendant. Further, the Court finds that plaintiff’s complaint is for unlawful detainer, and a motion to quash is not the appropriate mechanism for defendant’s asserted challenges. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390-391 [stating that a defendant can use a motion to quash when there are no unlawful detainer claims, but cannot use a motion to quash “to argue the plaintiff failed to comply with the pleading requirements specific to unlawful detainer actions set out in section 1166” or to contest the truth of the complaint’s allegations]; see also Motion, pp. 3-5.)

Defendant shall file his response to plaintiff’s complaint by no later than **five days** after service upon him of the written notice of entry of this order. (Code Civ. Proc., § 1167.4, subd. (b).)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

CASE: **Coronado v. Rodriguez et al.**
 Case No. CV2025-0575

Hearing Date: **July 23, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Royal Ganesh’s (“defendant”) motion for summary judgment, or in the alternative summary adjudication is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 437c.) Defendant’s moving and supporting papers were served on self-represented plaintiff Jose Garcia Coronado by electronic mail. (See Notice of Motion, p. 5 [Proof of Service, filed 4/27/26].) The Court finds that there is nothing in the Court’s file, or within the motion itself, indicating that plaintiff consented to electronic service. (Code. Civ. Proc., § 437c, subd. (a)(2); 1010.6, subd. (c)(1)–(5); YCR 7.2(f).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Kakar v. Ford Motor Company et al.**
Case No. CV2024-3284

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Farida Kakar’s (“plaintiff”) reply to defendant Ford Motor Company’s (“defendant”) opposition exceeds the 10-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire reply. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [“a trial court has broad discretion to accept or reject late-filed papers.”].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

Plaintiff’s motion for attorney fees and costs is **GRANTED IN PART** in the amount of **\$9,145.05**. (Civ. Code. § 1794, subd. (d).) The Court finds that:

- Plaintiff’s counsel’s requested hourly rates for Christopher Urner (“Urner”), Jorge L. Acosta (“Acosta”), and Mary M. Zazueta (“Zazueta”) are reasonable and commensurate with the prevailing rate in the community. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004, 1009 [“the court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.”]; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71–72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; Acosta Decl., ¶¶ 4-10, 14-21, 27-28 Exh. A.) However, plaintiff only submitted evidence supporting Urner, Acosta, and Zazueta’s hourly rates. (See, e.g., Acosta Decl.) Therefore, the Court declines to award attorneys’ fees for time incurred by individuals other than Urner, Acosta, and Zazueta. (See *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 26[“The prevailing party and fee applicant bears “the burden of showing that the fees incurred were... reasonably necessary to the conduct of the litigation,” and were ‘reasonable in amount’], internal quotation marks omitted.) The Court further finds that plaintiff has established the hours spent by Urner, Acosta, and Zazueta were reasonable. (Civ. Code, § 1794, subd. (d); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 105, fn. 6.; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133; Acosta Decl., ¶ 27, Exh. A.)
- The Court declines to impose a “20% trim to any fees awarded.” (Opp., pp. 6-7.) Defendant does not justify a 20 percent reduction as to all counsel’s billing entries. (*Mikhaeilpoor, supra*, 48 Cal.App.5th at pp. 248-250; Opp., p. 6-7.)
- A multiplier is not warranted in this straightforward Song-Beverly Consumer Warranty Act case. (See *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556-557; *Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 994; Acosta Decl.)

- The Court declines to award attorneys' fees as requested for the "estimated" time plaintiff claims Urner would spend reviewing the opposition and drafting a reply. (Acosta Decl., Exh. A [3.5 hours].) The Court further declines to award attorneys' fees for time not yet incurred to prepare for and attend the fee motion hearing. (Acosta Decl., Exh. A [2 hours].)
- Plaintiff has shown that the requested costs were "reasonably incurred . . . in connection with the commencement and prosecution of" this action. (Civ. Code, § 1794, subd. (d); Acosta Decl., ¶ 29, Exh. B.)

Therefore, the Court awards plaintiff **\$8,097.50** in attorneys' fees and **\$1,047.55** in costs, totaling **\$9,145.05**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required

TENTATIVE RULING

Case: **Scott v. DeSalvatore**
 Case No. CV2021-1217

Hearing Date: **July 23, 2026** **Department Thirteen** **9:00 a.m.**

Michael Fluetsch of Fluetsch and Fluetsch’s unopposed motion to be relieved as counsel for defendants Jason Wayne DeSalvatore, Michael Blackmun Jr., Native Ag Yolo, Inc., Cache Creek Cultivators, Inc., and Cache Creek Cannabis, Inc. is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client**. (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Urazandi v. Mike's Mobile, Inc.**
 Case No. CV2026-0689

Hearing Date: **July 23, 2026** **Department Thirteen** **9:00 a.m.**

Gregory P. Wayland of Corsaut & Wayland, LLP's unopposed motion to be relieved as counsel for plaintiff Daniel Urazandi is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 3.1362.) Mr. Wayland has not filed a proof of service showing that the notice of motion and motion, the declaration, and the proposed order were timely served on his client. (Cal. Rules of Court, rule 3.1362(d), 3.1300(c).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Weigant v. Arlington Farm Apartments**
 Case No. CV2025-0326

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Arlington Farm Apartments' request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) Defendant did not request judicial notice in a separate document as required. (Cal. Rules of Court, rule 3.1113(l).)

Defendant's unopposed motion for determination of good faith settlement is **GRANTED**. (Code Civ. Proc., § 877.6, subd. (a)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Smith v. Baker**
 Case No. CV2026-1600

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Karen Smith’s unopposed motion set aside and vacate the dismissal or adverse order entered on June 17, 2026 is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) Petitioner failed to file a proof of service at least five court days before the hearing, showing that the motion was timely served on respondent Sean Jones. (Cal. Rules of Court, rule 3.1300(c); Code Civ. Proc., § 1005, subd. (b).) Further, the Court finds that petitioner has not explained her mistake, inadvertence, surprise, or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

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TENTATIVE RULING

Case: **Smith v. Jones**
 Case No. CV2026-1601

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Karen Smith's unopposed motion set aside and vacate the dismissal or adverse order entered on June 10, 2026 is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) Petitioner failed to file a proof of service at least five court days before the hearing, showing that the motion was timely served on respondent Sean Jones. (Cal. Rules of Court, rule 3.1300(c); Code Civ. Proc., § 1005, subd. (b).) Further, the Court finds that petitioner has not explained her mistake, inadvertence, surprise, or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Smith v. Mosley**
 Case No. CV2026-1598

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Karen Smith's unopposed motion to set aside and vacate the dismissal or adverse order entered on June 17, 2026 is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The Court finds that petitioner has not explained her mistake, inadvertence, surprise, or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.